Substance Abuse Policy

Richtlinie zu Alkohol, Drogen und Medikamenten am Arbeitsplatz

Document title	Substance Abuse Policy
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Owner	Carlos Mendes, Safety Officer (Fachkraft für Arbeitssicherheit)
Approved by	Anja Richter, COO
Consulted	Workplace Safety Committee (Arbeitsschutzausschuss); Thomas Bauer, Works Council Chair (Betriebsrat); Julia Neumann, HR Director; Dr. Sabine Lang, company physician (Betriebsärztin); Mariam Haddad, HR Business Partner and EAP Officer; Dr. Nadia Petrov, General Counsel and Data Protection Officer
Applies to	All employees, trainees, working students, interns, contractors and temporary agency staff at all sites (Munich, Berlin, Garching, Frankfurt), in company vehicles, on business trips and at company events
Classification	Internal
Language	English. A German version is available from HR on request.

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1 Purpose

We establish safeguards against drug and alcohol abuse to ensure a safe and healthy working environment. Substance abuse imposes a burden on those caught up in it, but also on their co-workers. It may lead to poorer job performance and a higher risk of accidents.

To mitigate these risks, we have developed this policy to prohibit the use, possession or sale of drugs on company premises and to strictly regulate the consumption of alcohol. It is based on our duty of care under the Occupational Safety and Health Act (Arbeitsschutzgesetz, ArbSchG) and on the accident prevention regulation DGUV Vorschrift 1, which prohibits anyone from putting themselves into a state in which they endanger themselves or others.

2 Scope

All employees, trainees, contractors, temporary agency staff and part-time employees must abide by the provisions of this policy.

3 Rules while working

Illegal drugs, inhalants, and prescription and over-the-counter medication fall into the category "substances". We also place restrictions on alcohol consumption.

While working, you must not:

- possess, use or be under the influence of alcohol, inhalants or illegal drugs. You may consume alcohol in moderation at approved business meetings or social gatherings, provided you are not driving and not on duty in a safety-sensitive job afterwards;
- sell, buy, transfer or distribute drugs or drug paraphernalia;
- consume cannabis, including medical cannabis not used under a prescription, at work or on company premises (see also NS-EHS-POL-001).

Alcohol at a glance:

Situation	Rule
Normal working day, including remote work	No alcohol.
Approved business meetings, customer events and company parties	Moderate consumption is allowed. Non-alcoholic alternatives must always be offered. Nobody is expected to drink.
Driving a company vehicle, or driving to or from a work event	Zero alcohol (0.0 per mille) in any company vehicle.
Safety-sensitive work (see section 5)	No alcohol before or during work. Take the hours before your shift into account.

4 Prescribed and over-the-counter medication

You may take medication that has been prescribed for you or that you bought over the counter, as directed. We do not require you to tell us your diagnosis or the name of your medication.

If a medication, including prescribed medical cannabis, affects your ability to work safely (for example through drowsiness or reduced concentration), you must not perform safety-sensitive tasks. Please inform your line manager only that you cannot do certain tasks for the time being, or speak to the company physician in confidence. We will then look for suitable alternative duties where possible. Information on your health is handled in line with the Data Protection Policy (NS-LEG-POL-001).

5 Safety-sensitive work

If you do a safety-sensitive job, we may alter your job duties or send you home for the day if you are not fit to work, for example because you are under the influence of alcohol or drugs, or of medication that impairs your ability to work (such as muscle relaxants). Safety-sensitive work at Norvane Systems includes:

Area	Examples
Garching depot and warehouse	Operating forklifts and other industrial trucks; loading and handling heavy equipment; driving company vehicles.
Frankfurt data center	Work on power distribution, cooling and other technical building systems.
All sites	Work at height, with electrical installations or with hazardous substances (Gefahrstoffe); first aiders and fire wardens while on duty.

We may also take further action if your actions create safety risks. We determine the appropriate action case by case (see section 9).

6 Medical assessment and testing

Testing is a sensitive matter and is governed by German data protection and employment law. We therefore do not carry out random drug or alcohol tests, and we do not test job candidates or employees who are being promoted.

A medical assessment of fitness for work may only be arranged in the following cases:

- there is a concrete reason to doubt that an employee in a safety-sensitive job is fit to work (for example visible impairment), or
- the circumstances of a workplace accident are unclear and we need to rule out impairment.

In these cases the assessment is carried out by the company physician (Betriebsärztin), only with your informed consent and in line with our agreement with the Works Council (Betriebsrat). The company physician is bound by medical confidentiality and tells us only whether you are fit for the work, not the result of the test. If you do not agree to an assessment, we will treat you as not fit for safety-sensitive tasks for the day and send you home.

7 Role of managers

Your line manager is responsible for noticing and reporting signs of impairment at work, but must not diagnose a cause. If a manager has a concrete concern, they must:

- speak to the employee privately and ask a second manager or a Works Council (Betriebsrat) member to join if the employee wishes;
- stop the employee from doing safety-sensitive work immediately, and arrange safe transport home (not by the employee driving);

- call 112 in case of a medical emergency;
- inform HR the same day and record what was observed.

8 Help and support

If you are struggling with alcohol, drugs or medication, or are worried about a colleague, please talk to us early. Asking for help will not by itself lead to disciplinary action. Our options include confidential counselling through our employee assistance programme (EAP), advice from the company physician, and referral to external addiction counselling services (Suchtberatungsstellen) and the Krankenkasse. We may agree with you on a stepwise plan (Stufenplan) with the Works Council (Betriebsrat), which sets out conversations, support offers and consequences if the problem persists.

9 Disciplinary consequences

We may take disciplinary action, up to and including termination of employment, when you:

- are under the influence of alcohol or illegal drugs at work, or use any kind of drug on company premises;
- sell, or attempt to sell, any form of substance;
- do not leave a safety-sensitive workplace when you are instructed to do so because you are not fit for work.

Managers and HR decide on the appropriate action depending on the circumstances. Action may range from a conversation to a formal warning (Abmahnung) and, in serious cases, termination, in accordance with German employment law and after hearing the Works Council (Betriebsrat). Private consumption outside working time and outside our premises is not a matter for this policy unless it affects your fitness for work.

10 Key contacts

Topic	Contact	Email	Ext.
Policy owner, safety questions	Carlos Mendes, Safety Officer	carlos.mendes@norvane.example	2400
Confidential counselling (EAP)	Mariam Haddad, HR Business Partner	eap@norvane.example	2010
Medical advice and assessment	Dr. Sabine Lang, company physician (Tuesdays at HQ)	sabine.lang@norvane.example	2450
HR questions, reports	HR team	hr@norvane.example	2000
Employee representation	Thomas Bauer, Works Council Chair	betriebsrat@norvane.example	2500
Emergency, building security (24/7)	Building security	security@norvane.example	9111

In an emergency call 112 (emergency services) or 110 (police).

11 Related documents

Document ID	Title	Relevance

NS-EHS-POL-001	Smoke-Free Workplace Policy	Smoking and cannabis on premises
NS-EHS-PRC-001	Emergency and Evacuation Procedure	Medical emergencies
NS-HR-POL-001	Employee Code of Conduct	General conduct
NS-HR-POL-004	Workplace Policies	Further workplace rules
NS-LEG-POL-001	Data Protection Policy	Health data

12 Version history

Version	Date	Author	Change
1.0	15.05.2023	Carlos Mendes	First issue.
1.1	01.04.2024	Carlos Mendes	Added safety-sensitive work and role of managers.
1.2	01.03.2026	Carlos Mendes	Revised with the Works Council and the company physician; testing rules aligned with German law; support section added.

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